REPLY ON BEHALF OF RESPONDENT NO. 2 (ICMR-NIIRNCD, JODHPUR) TO THE REVIEW PETITION FILED BY THE PETITIONER

PARA-WISE REPLY TO THE REVIEW PETITION:

That without prejudice to the preliminary objections, the para-wise reply to the contents of the Review Petition is submitted in a tabular form as under:

Para No. of Review Petition	Point of Court / Averments made by the Petitioner	Reply of the Respondent (ICMR-NIIRNCD, Jodhpur)
1	Details regarding identity and residence of the Petitioner.	No Comments.
2	Review petition preferred against the High Court order dated 17.10.2023 which allowed the writ petition of the Respondents and quashed the CAT order.	On the basis of the documentary evidence placed on record before the Hon'ble Rajasthan High Court at Jodhpur, the Hon'ble Court was pleased to quash and set aside the impugned order of the Ld. CAT. The judgment suffers from no error apparent.
3	Order dated 17.10.2023 was challenged via SLP (C) No. 12254/2024, withdrawn on 14.05.2025 with liberty to file a review petition relying on DoPT OM dated 03.03.2023.	That the order dated 17.10.2023 passed by the Hon'ble High Court was not impugned and was in strict accordance with the Rules and Regulations issued by DoPT, Govt. of India. It is a matter of record that the SLP was withdrawn with liberty to file a review petition based on DoPT letter dated 03.03.2023.
4	Petitioner is currently working as Translation Officer in NIIRNCD (formerly DMRC) under ICMR.	That the petitioner is currently working as Junior Translation Officer at ICMR-NIIRNCD, Jodhpur
5	Sept 2003 advertisement by Respondent No. 2 inviting applications for Junior Hindi Translator.	Agree
6-10	Details regarding the Petitioner qualifying the exam, initial	No Comments.

	appointment letter, joining report on 24.11.2003, service extension, and medical fitness.	
11	Regularization of the services of the Petitioner as Junior Hindi Translator on 01.04.2005 in pay scale 5000-150-8000.	The petitioner was initially appointed on an ad-hoc and temporary basis on 15.11.2003, and no annual increment was granted after the completion of one year (i.e., in Nov 2004), which was further extended up to 31.01.2005 by OM NO. 48/8/86-I/ DMRC dated 12.02.2004 and further extended up to 31.03.2005 by OM no. 48/8/86-I/DMRC/ dated 15.02.2005 up to 31.03.2005 in reference to the initial appointment. Thereafter, the petitioner was regularized to the post of Junior Hindi Translator in the pay scale of Rs. 5000–150–8000 plus usual allowances with effect from **01.04.2005**, subject to a probation period of two years, extendable at the discretion of the competent authority.
12	Closure of probation period via Memo dated 31.01.2007.	No Comments. (Probation closed w.e.f. 31.03.2007 A/N as per OM No. 16(1)/92-II/DMRC/1616).
13	Submission of nomination form for retirement gratuity mentioning recruitment in Nov 2003.	**No comments**
14	Representation dated 24.08.2011 seeking inclusion in the Old Pension Scheme (OPS).	She has represented for her inclusion under the OPS on the basis of her date of joining/recruitment, i.e., 24.11.2003. However, the said request cannot be acceded to in view of the extant guidelines issued by DoPT, Govt. of India.
15	Claim that since Petitioner was appointed on 24.11.2003, she must be covered under OPS, but S-I form (NPS) was wrongfully filled and returned.	She has sought her inclusion under the OPS on the basis of her date of joining/recruitment (24.11.2003). However, the request for inclusion under OPS is not agreed to as per the guidelines issued by DoPT, as her regular appointment was post 01.01.2004.

16	Respondent No. 2 accepted Petitioner's form under OPS and allotted GPF Account No. 7424, later withdrawn on 18.10.2012.	The petitioner's form under the OPS was processed, and her name was **inadvertently admitted** for seeking the benefit of the ICMR Provident Fund through allotment of GPF Account No. 7424 on 10.10.2012. This letter was subsequently withdrawn by ICMR just 8 days later on 18.10.2012 (Letter No. AC/2GPF/2012-2013), specifically mentioning it was issued by mistake as she was appointed on a regular basis w.e.f. 01.04.2005.
17-18	Letters regarding inclusion in NPS and allotment of PRAN on 16.01.2014.	Agreed. Action was taken in strict compliance with DoPT/GOI orders.
19	OM dated 17.02.2020 clarifying coverage under OPS via one-time relaxation.	As stated in DoPT Letter No. 57/05/2021-P&PW(W) dated 03.03.2023, it is clearly stipulated that a one-time option was granted to employees declared successful against **vacancies that arose prior to 01.01.2004**, but who joined service after 01.01.2004. In the present case, the petitioner was not appointed against any clear/regular vacancy prior to 01.01.2004.
20-23	Various representations made by Petitioner, replies given by Respondents, and filing of O.A. before Ld. CAT, Jodhpur.	No Comments.
24	Final order passed by Ld. CAT, Jodhpur on 23.02.2022 allowing the Petitioner's O.A.	It is submitted that the Learned CAT passed a final order allowing the O.A. on the ground that the petitioner was duly covered under the OPS. The department challenged the aforesaid order, and the Hon'ble High Court rightly quashed it.
25-26	Filing of Writ Petition No. 13570/2022 by Respondents and counter affidavit by Petitioner.	No Comments, as the facts stated are matters of record and already known.

27	DoPT OM dated 03.03.2023 giving one-time opportunity for coverage under OPS for posts advertised prior to NPS notification.	As stated in DoPT Letter dated 03.03.2023, the one-time option is available to employees appointed against vacancies advertised/notified prior to 22.12.2003. In the present case, the petitioner was not appointed against any duly sanctioned or notified *clear vacancy*; hence, the benefit of the aforesaid one-time option is not applicable to her.
28	Representation to consider the case under OM dated 03.03.2023 refused.	No Comments.
29	High Court order dated 17.10.2023 allowing Writ Petition, noting absence of clear available vacancy before 31.12.2003.	No Comments. The order of the Ld. CAT was quashed and set aside, observing that the petitioner's appointment was temporary and the respondent had no duly sanctioned vacancy on or before 31.12.2003; consequently, the petitioner was not entitled to coverage under the Old Pension Scheme.
30-34	Filing of SLP, withdrawal with liberty, lack of alternative remedy, and filing of the present Review Petition.	No Comments.

REPLY TO GROUNDS (A to V):

1. Regarding the claim of continuous service and application of Rule 13 of CCS (Pension) Rules (Grounds A to D):

Denied. The Hon'ble Court correctly held that the Petitioner was appointed on a purely ad-hoc and temporary basis against a lien vacancy (vide OM dated 15.11.2003). The appointment order categorically stated that if the lien-holder resigned, the work performed by the Petitioner "up to 30.01.2004 will be *reviewed and considered* for continuation of appointment by the competent authority," subject to further Medical Examination and C&A Verification. Thus, the temporary service was not automatically substantive. Her regular, substantive appointment was initiated via OM No. 48/8/86-I/DMRC/ dated 01.04.2005 w.e.f. 01.04.2005, which is well after the 01.01.2004 NPS cut-off.

2. Regarding the application of DoPT OM dated 17.02.2020 & 03.03.2023 (Grounds E to K, S):

Denied. The DoPT OM dated 03.03.2023 specifies that the one-time option is available for appointments against a post/vacancy advertised/notified *prior to the date of notification for the*

National Pension System (22.12.2003). However, this is not applicable in the case of Dr. Kanchan Bala because there was **no clear vacancy prior to 01.01.2004**. The earlier appointment was strictly temporary against a lien vacancy. Regular appointments cannot be retrospectively mapped to ad-hoc service rendered against a post where another employee held a lien.

3. Regarding the Doctrine of Estoppel and GPF Allotment (Ground N & Q):
Denied. There can be no estoppel against statute or established Government rules. The allotment of GPF No. 7424 on 10.10.2012 was a clerical error. It was promptly identified and withdrawn by ICMR on 18.10.2012 (vide letter AC/2GPF/2012-2013), explicitly stating that it was issued by mistake as the Petitioner was appointed on a regular basis w.e.f. 01.04.2005. The Petitioner cannot derive substantive legal rights from an inadvertent administrative error that was immediately rectified.

The employee who was on lien has resigned from her post through letter dated 10.03.2005 after that the lien was cancelled and a clear vacancy has been occurred.